

STATE OF NEW YORK
SUPREME COURT COUNTY OF QUEENS
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MARNELL BURNELL,

Plaintiff,

- against -

**THE CITY OF NEW YORK, MINOSHI JONES,
POLICE OFFICER J. SIMICICH POLICE
OFFICER GEBHART, and POLICE OFFICERS
JOHN DOES 1-3,** in their individual and official
capacities as Police Officers employed by the City
of New York,

Defendants.
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: July 10, 2013
New York, New York

Yours, etc.,



ANDREW F. PLASSE, P.C.
Attorney for the Plaintiff
Office and P.O. Address
352 7th Avenue, Suite 1222
New York, NY 10001
(212) 695-5811

DEFENDANTS' ADDRESS:

The City of New York, 1 Centre Street, New York, NY 10007

Police Officer J. Simicich, Police Officer Gebhart, and Police Officers John Does1 1-3
16702 Baisley Blvd., Jamaica, NY

Minoshi Jones, address unknown

STATE OF NEW YORK
SUPREME COURT COUNTY OF QUEENS

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MARNELL BURNELL,

Plaintiff,

- against -

COMPLAINT

Index No.:

**THE CITY OF NEW YORK, MINOSHI JONES,
POLICE OFFICER J. SIMICICH POLICE
OFFICER GEBHART, and POLICE OFFICERS
JOHN DOES 1-3,** in their individual and official
capacities as Police Officers employed by the City
of New York,

Defendants.

-----X

Plaintiff, by his attorney, ANDREW F. PLASSE, as and for his Complaint,
hereby alleges and shows to the Court the following, all upon information and belief:

1. At all times hereinafter mentioned, the Plaintiff Marnell Burnell is an individual and resides at 1249 Jefferson Ave., Brooklyn, NY 11221.
2. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
3. That heretofore the Plaintiff caused a Notice of Claim, in writing, sworn to by and on behalf of the Plaintiff, to be duly served upon the defendant City of New York by delivering a copy thereof to the Office of the Corporation Counsel of the City of New York, which said Notice of Claim set forth the name and post office address of the said claimant, the nature of the claim, the time when, the place where and the manner in which said claim arose and the items of damages or injuries claimed to have been

sustained so far as then practicable; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

4. Upon information and belief, defendant Minoshi Jones is an individual who resides in Jamaica, New York.

5. Upon information and belief, and at all times hereinafter mentioned, defendants Police Officer J. Simicich, and Police Officer Gebhart, were and now are, New York City Police Officers, who were employed with the 113th Precinct on the date of this incident.

6. Upon information and belief, and at all times hereinafter mentioned, defendants Police Officers John Does 1 -3, were and now are, New York City Police Officers, who were employed with the 113th Precinct on the date of this incident. The names "John Does 1 -3 indicate that the actual names of these Police Officers are currently unknown. Plaintiff intends to discover the identity of these individuals.

7. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

8. At the time of the alleged incident and at all times pertinent hereto, the defendants Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3 acted under color of State Law or a statute, ordinance, regulation or custom.

STATEMENT OF FACTS

9. On March 27, 2013, at approximately 4:30 p.m., the Plaintiff was in front of 117-20 146th Street, Queens, NY on the sidewalk.

10. Plaintiff was physically stopped and knocked down to the pavement, kicked in the head, had his left wrist twisted around which resulted in comminuted fractures, had his right wrist twisted resulting in a non displaced fracture and sustained other permanent physical injuries when Police Officers J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3 assaulted and battered him.

11. Marnell Burnell was placed under arrest.

12. Marnell Burnell was placed inside of a Police Car.

13. Minutes later Minoshi Jones identified plaintiff as a person who robbed her of \$600.00 with a firearm.

14. Minoshi Jones accused plaintiff of committing a felony, to wit, Robbery.

15. Plaintiff was not in possession of a firearm.

16. Plaintiff was not in possession of \$600.00.

17. Plaintiff was charged with Robbery.

18. Plaintiff was initially treated for three days at Jamaica Hospital for his bilateral wrist fractures.

19. Plaintiff was then transferred to the Vernon C. Bain Center, 1 Halleck Street, Bronx, NY where he remained detained for the Robbery Charge.

20. On or about May 31, 2013, the pending charges were dismissed by a Grand Jury in Queens County.

21. Plaintiff remained in custody until July 5, 2013.

PLAINTIFF'S CLAIM.

22. Upon information and belief, Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3, acted with actual malice toward the plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff

23. Upon information and belief, the actions taken as aforesaid by Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3, constituted excessive use of force, an unreasonable search and seizure and deprivation of liberty without due process of law.

24. Upon information and belief, the conduct of defendants Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3, violated the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.

25. Upon information and belief, Minoshi Jones slandered the Plaintiff by accusing him of a Robbery.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS POLICE OFFICER J. SIMICICH, POLICE OFFICER GEBHART, and POLICE OFFICERS JOHN DOES 1-3, JOINTLY AND SEVERALLY, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-25" AND FURTHER ALLEGES AS FOLLOWS:

26. Upon information and belief, the actions taken as aforesaid by Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3, constituted excessive force, an unreasonable search and seizure in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

27. Upon information and belief, Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3, acted with actual malice toward the Plaintiff

and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

28. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

29. That by virtue of the foregoing, Plaintiff has been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-25" AND FURTHER ALLEGES AS FOLLOWS:

30. That the employees of the defendant as aforesaid, in the scope of their employment as New York City Police Officers, assaulted and battered the plaintiff causing her to sustain severe personal injuries.

31. That such conduct was committed in the scope of employment with the City of New York.

32. The City of New York is liable for the intentional torts committed by its employees in the scope of their employment pursuant to the doctrine of respondeat superior.

33. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-25" AND FURTHER ALLEGES AS FOLLOWS:

34. New York City owed a duty to Plaintiff to train and supervise and otherwise control its Police Officers in the proper methods of Use of Force incidental to this matter, and in the course of their Policing functions. New York City failed to provide adequate training, hiring, supervision and control for the Police Officers involved herein, and said failure constitutes negligence.

35. As a proximate result of the City of New York's negligence to provide adequate training, hiring, supervision and control of the Police Officers involved herein, Plaintiff has sustained personal injuries.

36. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-25" AND FURTHER ALLEGES AS FOLLOWS:

37. That the employees of the defendant as aforesaid jointly and severally assaulted and battered the plaintiff causing her to sustain severe personal injuries.

38. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-25" AND FURTHER ALLEGES AS FOLLOWS:

39. That the employees of the defendant as aforesaid jointly and severally falsely arrested the plaintiff causing her to sustain severe personal injuries.

40. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-25" AND FURTHER ALLEGES AS FOLLOWS:

41. That the employees of the defendant as aforesaid jointly and severally maliciously prosecuted the plaintiff causing him to sustain severe personal injuries.

42. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-25" AND FURTHER ALLEGES AS FOLLOWS:

43. Upon information and belief, the actions taken as aforesaid by Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3, constituted

excessive force, an unreasonable search and seizure and deprivation of liberty without due process of law.

44. Upon information and belief, at all times pertinent hereto, New York City permitted and tolerated a pattern and practice of excessive force, unreasonable search and seizures, denial of prompt medical treatment, and deprivations of liberty without due process of law by Police Officers of the City of New York.

45. Upon information and belief, the City of New York has maintained a system of review of police conduct which is so untimely and cursory as to be ineffective and which permits and tolerates the excessive force, unreasonable search and seizures and deprivations of liberty without due process of law by Police Officers.

46. At all times pertinent hereto, Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3, were acting within the scope of their employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, or the affirmative link behind the conduct causing the plaintiff's injuries.

47. The City of New York is therefore liable for the violations of Plaintiff's constitutional rights by Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3.

48. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT MINOSHI JONES, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY

**ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED
“1-25” AND FURTHER ALLEGES AS FOLLOWS:**

49. That the defendant Minoshi Jones slandered the plaintiff by accusing him of a Felony causing him to sustain severe personal injuries.

50. That by reason of the foregoing, the plaintiff has been damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action against defendants Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3 in the amount of TEN MILLION (\$10,000,000.00) DOLLARS;

II. Judgment for Punitive Damages against defendants Police Officer J. Simicich, Police Officer Gebhart and Police Officers John Does 1-3 in the amount of TEN MILLION [\$10,000,000.00] DOLLARS;

III. Judgment on the First Cause of Action against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IV. Judgment on the Second Cause of Action against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

V. Judgment on the Third Cause of Action against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VI. Judgment on the Fourth Cause of Action against the City of New York in an

amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VII. Judgment on the Fifth Cause of Action against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

VIII. Judgment on the Sixth Cause of Action against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IX. Judgment on the First Cause of Action against defendant Minoshi Jones in the amount of TEN MILLION (\$10,000,000.00) DOLLARS;

X. Together with the costs and disbursements of this action and for such other and further relief as to this Court seems just and proper.

DATED: July 10, 2013
New York, New York



ANDREW F. PLASSE, P.C.
Attorney for the Plaintiff
Office and P.O. Address
352 7th Avenue, Suite 1222
New York, NY 10001
[212] 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for Marnell Burnell, the plaintiff in the within action; I have read the foregoing COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this

verification is made by me and not by Marnell Burnell, is because he resides outside of the County of New York, and is outside the principal location of my office which is located in New York County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: July 10, 2013
New York, New York

A handwritten signature in black ink, appearing to read 'A F Plasse', written over a horizontal line.

ANDREW F. PLASSE

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STATE OF NEW YORK
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SUMMONS AND COMPLAINT

ANDREW F. PLASSE, P.C.

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